

		In its opposition, Defendant states “[t]he parties can resolve their disputes if Plaintiff’s counsel were to work with DeAngelo’s counsel to reach an agreement about the scope of the Requests and definition. Plaintiff’s counsel’s blatant refusal to make any concessions, as well as their personal attacks against DeAngelo, have thwarted the parties’ meet and confer efforts.” (Opp., 4:19-22.) The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding the issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties’ attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party’s position on the discovery request that remains in dispute. Plaintiff to give notice.
2	21-01199592 <i>Burgos vs. Degiacomo</i>	Motion for Equitable Relief Plaintiff Glenda Burgos’s Motion for Equitable Relief is DENIED. Plaintiff, in pro per, moves for an order granting equitable relief and restoration of her appellate rights based on extrinsic mistake alleging attorney abandonment. Plaintiff’s prior counsel timely filed notices of appeal of this court’s initial judgment and the amended judgement that added Defendant’s fees and costs. (Dreyfuss Decl., ¶¶ 3-4; ROA 208, 246.) However, on 6/4/25 and 7/17/25, the appellate court issued a remittitur for each appeal after dismissing them for failure to file opening briefs. (Dreyfuss Decl., ¶¶ 9, 12, 15-16, Ex. 1; ROA 277, 278.) Plaintiff, in pro per, filed a motion to recall each remittitur, which Defendant opposed. (Dreyfuss Decl., ¶¶ 13, 17-20, 22-25, Exs. 3-6, 8-11.) The court of appeal denied each motion on 7/10/25 and on 8/7/25. (Dreyfuss Decl., ¶¶ 21, 26, Exs. 7, 12.) Plaintiff filed petitions for review with the California Supreme Court, which were denied on 7/16/25, 10/15/25. (Dreyfuss Decl. iso Motion for Attorney Fees on Appeal ¶¶ 6-7.) Plaintiff, in pro per, filed the instant motion on 12/23/25. However, this court does not have jurisdiction to grant the relief Plaintiff seeks. Plaintiff’s recourse was to file the appropriate motion(s) with the appellate court, which she did in part. More specifically, since Plaintiff sought relief after dismissal and issuance of the remittiturs, her final recourse was to file a motion with the appellate court to vacate the dismissals and permit a cure of the default. (<i>In re Jacqueline H.</i> (1978) 21 Cal.3d 170, 179; <i>Sanders v. Warden</i> (1951) 106 Cal.App.2d 707, 708; see also Eisenberg et al., Cal. Practice Guide: Civil Appeals & Writs (The Rutter Group) ¶¶ 5:50-5:51, p. 5-B.) Further, since issuance of the remittiturs deprived the appellate court of further jurisdiction, the motion to vacate should have been

		accompanied by a motion to recall the remittitur so as to restore the appellate court's jurisdiction. (Eisenberg et al., Cal. Practice Guide: Civil Appeals & Writs (The Rutter Group) ¶¶ 5:51, 14:2, 14:34). Plaintiff failed to file motions to vacate the dismissals with the appellate court. However, she filed motions to recall the remittiturs, which asserted essentially the same grounds presented in the instant motion – her attorney failed to file the opening briefs resulting in dismissal “due to serious personal and mental health challenges”/ “mental illness, which rendered him unable to meet court deadlines” and Plaintiff had no knowledge of the dismissals. (See Dreyfuss Decl., Exs. 3, 8.) The California Supreme Court denied Plaintiff's petitions for review. It would not be appropriate or within this court's jurisdiction to review or reverse the appellate court's prior rulings. This court does not have jurisdiction to reinstate Plaintiff's appellate rights where the court of appeal already declined to do so on the same general basis she is reasserting here. Plaintiff does not cite any authority that would allow this court to grant her requested relief. The cases she cites concern appeals from trial court orders denying motions to set aside dismissals or defaults <u>entered by the trial court</u>. (See, e.g., <i>Daley v. Butte County</i> (1964) 227 Cal.App.2d 380 [reversing trial court's order denying § 473(b) motion to vacate trial court's judgment of dismissal for failure to prosecute holding that where consistent and long-continued inaction by counsel of records for plaintiff effectually deprived plaintiff of representation, ends of justice required that motion to vacate judgment of dismissal should have been granted with or without conditions, and its denial was an abuse of discretion]; <i>Rapleyea v. Campbell</i> (1994) 8 Cal.4th 975 [reversing appellate court's affirmance of trial court's order denying § 473(b) motion to set aside trial court's entry of default and default judgment holding denial was abuse of discretion as it should have been granted on equitable grounds].) They do not concern a trial court reviewing an appellate court's order dismissing the appellant's appeal. The motion is denied.
4	25-01499896 <i>Exim Engineering, Inc. vs. Orange Courier Inc.</i>	Motion to Be Relieved as Counsel of Record The motion of attorney William Kersten from Kersten & Associates to be relieved as counsel of record for defendant, Orange Courier Inc. is CONTINUED to [REDACTED]. California Rules of Court, Rule 3.1362, subdivision (d) requires that: “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.” Although the declaration in support of the motion states client was served with the moving papers by mail, no proof of service was filed showing moving papers were served on client or on the other parties who have appeared in the case.